

92

To

The Executive Officer,
Cantonment Board Office,
N A S I R A B A D.
(Rajasthan).

Dear Sir,

Sub:- Building Application - House No. 532, Survey
No. 751, Nasirabad Cantonment.
Ref:- Your office letter No. 3369 dated 16/12/66.

You will kindly excuse me when I say that your letter cited above is surprising and shocking as well, as it adversely tells upon the working of your office, in that there does not appear to be adequate coordination in various branches. While one branch of your office has been recovering property tax for years umpteen for a property, the other branch of the same office is asking the property-owner to produce documentary evidence to prove the ownership of the same property. Well, taking for a moment that I am not the owner of the property in question (which is not the case), may I know what for the Cantonment has been charging property tax for that property every year since 1923-24, repeat 1923-24 (since purchase), i.e. for the last 44 years, which is not a small period.

2. I would request you to kindly only call for the record of bills (counterfoils) and receipts issued by your office since 1923, and you will observe that I have since then been paying the property tax of property in dispute, i.e. property No. 532 in addition to the tax for property No. 533. Except a couple of them which have been lost, the rest all are in my possession and, if you recollect, I had shown them to you in your chamber during our meeting on 25-11-66. For your further information, I enclose herewith a statement showing the annual Receipt/Bill Nos., Book Nos., date and the year. You will kindly observe from the statement that I have been paying the tax since 1923-24 and the Receipts and Bills which are available have been shown in the statement. The statement would also facilitate your office in tracing out the relevant records of bills and receipts of this property. The original bills can again be shown to you, if required.

3. I would request you to kindly recall our discussions of 25-11-66 when I had presented my file for your inspection from which you were absolutely convinced that there was something wrong in the records of your office and that the applicant is rightly the owner of the property. I had even shown you the Cantonment Receipts and Bills to establish my claim.

4. The fact that I have been paying tax of the property in question, as is established from the above discussion and the statement enclosed, is itself a conclusive proof of my ownership.

5. I would, therefore, request you to kindly call for the file of property No. 532 as well as that of 533, which itself contains all the documentary evidence, even the Sale Deed and old plan of the House No. 532 sold by Shri Harsukh s/o Nandas to Shri Gordhan s/o Binja (grand-father of the applicant). That kutchha house was in ruinous condition and was washed off by annual rains gradually, with the result that the said property No. 532 today exists only in the form of open land for building site, measuring: North side 34'-6", West 7'-3", South 35'-6" and East 16'-4", total area being 405 sft. The counterfoils of